

7	30-2022-01246540 Raminfard v. Armijo	<u>Motion No. 1:</u> Based on Plaintiff's (Ashley Raminfard) Notice of Withdrawal of Plaintiff's Motion to Quash subpoenas Seeking Plaintiff's Medical Records Plaintiff's (filed on 9-21-23 under ROA No. 256), Plaintiff's (Ashley Raminfard) Motion to Quash Subpoenas Seeking Plaintiff's Medical Records, or, in the Alternative, for a Protective Order (filed on 4-14-23 under ROA No. 170, and scheduled for hearing on 9-26-23) is OFF CALENDAR. <u>Motion No. 2:</u> Plaintiff's (Ashley Raminfard) Motion to Quash Subpoenas Seeking Plaintiff's Employment Records, or, in the Alternative, for a Protective Order (Motion), filed on 4-14-23 under ROA No. 173, is GRANTED in part and DENIED in part. Code of Civil Procedure section 1987.1 states, in part, "(a) If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person. [¶] (b) The following persons may make a motion pursuant to subdivision (a): [¶] (1) A party. [¶] (2) A witness. . . ." Code of Civil Procedure section 1985.3 states, in part: ". . . (g) Any consumer whose personal records are sought by a subpoena duces tecum and who is a party to the civil action in which this subpoena duces tecum is served may, prior to the date for production, bring a motion under Section 1987.1 to quash or modify the subpoena duces tecum. Notice of the bringing of that motion shall be given to the witness and deposition officer at least five days prior to production. The failure to provide notice to the deposition officer shall not invalidate the motion to quash or modify the subpoena duces tecum but may be raised by the deposition officer as an affirmative defense in any action for liability for improper release of records. . . ."
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		without regard to the other considerations articulated in <i>Hill v. National Collegiate Athletic Assn.</i>, <i>supra</i>, 7 Cal.4th 1, 26 Cal.Rptr.2d 834, 865 P.2d 633, they are disapproved.” (<i>Id.</i>, at p. 557.) Plaintiff seeks to quash the Deposition Subpoenas directed to California State University, Fullerton, Coast Community College District, Fullerton School District, Garden Grove Unified School District, Orange County Registrar of Voters, and Tustin Unified School District issued on 3-20-23. (Phillips Decl., ¶ 3 and Exhibits A, B, C, D, E, and F.) Each of the Deposition Subpoenas request the following records: (1) Wage/ payroll, to include W-2s, W-4s & 1099s; (2) Salary increase/decrease records; (3) Performance evaluations; (4) Pre-employment physical records; (5) Questionnaires; (6) Job records; (7) Disability payments; (8) Disability claims; (9) Disciplinary notices; (10) Leave of absence records; (11) Attendance records; (12) Hours worked; (13) Time cards; (14) Supervisor review notes; (15) Work related injury records; (16) Workers compensation claims; (17) Insurance benefits; and (18) And all other records pertaining to Ashley Raminfard for all dates. (Phillips Decl., ¶ 3 and Exhibits A, B, C, D, E, and F.) Defendant issued these Deposition Subpoenas to the Deponents on 3-20-23. (Phillips Decl., ¶ 3 and Exhibits A, B, C, D, E, and F.) Defendant’s (North Orange County Community College District) Opposition to Motion to Quash Subpoenas Seeking Plaintiff’s Employment Records (Opposition), filed on 9-6-23 under ROA No. 211, states, “Plaintiff is seeking lost past and future wages. This, of course, triggers plaintiff’s duty to mitigate her damages.” (Opposition; 3:21-23.) Plaintiff’s First Amended Complaint (FAC), filed on 9-12-22 under ROA No. 89, alleges, “As a proximate result of the publication and republication of these defamatory statements by Defendants, and each of them, Plaintiff has suffered injury to her personal, business and professional reputation including suffering embarrassment, humiliation, severe emotional distress, shunning, anguish, fear, loss of employment, and employability, and significant economic loss in the form of lost wages and future earnings, all to Plaintiff’s economic, emotional, and general damage in an amount according to proof.” (FAC, ¶ 88.) Thus, the FAC places Plaintiffs lost wages and future earnings at issue. <i>Kao v. University of San Francisco</i> (2014) 229 Cal.App.4th 437, 454 (<i>Kao</i>), states, “ '[B]efore projected earnings from other employment opportunities not sought or
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		accepted by the discharged employee can be applied in mitigation, the employer must show that the other employment was comparable, or substantially similar, to that of which the employee has been deprived. . . .’ [Citation.]” The court finds that Plaintiff has a legally protected privacy interest in Plaintiff’s employment records under <i>San Diego</i>. Defendants have raised an important countervailing interest in that the records are necessary for the ascertainment of truth in legal proceedings as to damage pertaining to lost past and future earnings. (Opposition; 3:17-5:8.) In conducting the balancing under <i>Williams</i>, the court finds that the countervailing interest as to CACI No. 3963 does not outweigh Plaintiff’s privacy interest. Under CACI No. 3963 and <i>Kao</i>, Defendant has not provided evidence of other employment that Plaintiff did not seek or rejected. (Storti Decl.) Without this evidence, the requests are overbroad because they will disclose information beyond what is necessary to defend against Plaintiff’s claims for lost past and future earnings. Therefore, the court DENIES the Motion to the extent it is based on CACI No. 3963. CACI Nos. 3961 and 3962, however, describe the calculations used to determine damages based on mitigation. In conducting the balancing under <i>Williams</i>, the FAC specifically requests damages for lost past and future and earnings. CACI Nos. 3961 and 3962 describe the calculations used to determine damages based on mitigation. Based on the balancing under <i>Williams</i>, the court finds that the requests for records pertaining to “. . . wage/payroll, to include W-2s, W-4s & 1099s, salary increase/decrease records . . .” are records relevant to Plaintiff’s claims for lost past and future earnings. (Phillips Decl., ¶ 3 and Exhibits A, B, C, D, E, and F.) Therefore, the court finds that Defendants’ countervailing interest outweighs Plaintiff’s right to privacy as to these records because the FAC places Plaintiff’s lost past and future earnings at issue. As to the remaining requests, the court finds that Plaintiff’s privacy interest outweighs the countervailing interest raised by Defendant because these requests are overbroad. The remaining requests are overbroad because they will disclose Plaintiff’s confidential employment and personnel information beyond what is necessary to defend against Plaintiff’s claim for damages based on lost past and future earnings. Based on the above, the court DENIES Plaintiff’s (Ashley Raminfar) Motion to Quash Subpoenas Seeking Plaintiff’s Employment Records, or, in the Alternative, for a
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	Protective Order, filed on 4-14-23 under ROA No. 173, to the extent it seeks to quash the request pertaining to “. . . wage/payroll, to include W-2s, W-4s & 1099s, salary increase/decrease records . . .” as to each of the Deponents. (Phillips Decl., ¶ 3 and Exhibits A, B, C, D, E, and F.) The court GRANTS the Motion as to the remaining requested records. The court DENIES Plaintiff’s request for a monetary sanction because Plaintiff failed to request a monetary sanction in the Notice of Motion. The court generally cannot grant different relief, or relief on different grounds, than stated in the notice of motion. (<i>Luri v. Greenwald</i> (2003) 107 Cal.App.4th 1119, 1124-1125.) Further, the court finds that Plaintiff was substantially justified in bringing the Motion, and Defendant was substantially justified in opposing the Motion. (Code Civ. Proc., § 1987.2, subd. (a).) Plaintiff is to give notice. <u>Motion No. 3:</u> Plaintiff’s (Ashley Raminfard) Motion to Quash Subpoena Seeking Plaintiff’s Employment Records, or, in the Alternative, for a Protective Order (Motion), filed on 5-19-23 under ROA No. 180, is GRANTED in part and DENIED in part. Initially, the court notes that this Motion seeks to quash a Deposition Subpoena directed to the Orange County Registrar of Voters issued on 5-4-23. (Motion; 3:3-18.) The declaration in support of the Motion refers to this Deposition Subpoena as Exhibit A, but does not attach the Deposition Subpoena. (Phillips Decl., ¶ 3(a).) The Motion describes that the Deposition Subpoena requests the same records as the records the court ruled upon in deciding Motion No. 2. Defendant’s (North Orange County Community College District) Opposition to Motion to Quash Subpoenas Seeking Plaintiff’s Employment Records (Opposition), filed on 9-12-23 under ROA No. 229, states, “Plaintiff is seeking lost past and future wages. This, of course, triggers plaintiff’s duty to mitigate her damages.” (Opposition; 3:22-23.) Although the court does not have a copy of the Deposition Subpoena, the court has already ruled upon a Deposition Subpoena issued to the Orange County Registrar of Voters on 3-20-23 as part of its ruling on Motion No. 2. Since the Deposition Subpoena at issue in this Motion appears to seek the same records, the court GRANTS this Motion in part and DENIES this Motion in part for the same reasons as stated for Motion No. 2.
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		Based on the above, the court Based on the above, the court DENIES Plaintiff's (Ashley Raminfard) Motion to Quash Subpoena Seeking Plaintiff's Employment Records, or, in the Alternative, for a Protective Order, filed on 5-19-23 under ROA No. 180, to the extent it seeks to quash the request pertaining to ". . . wage/payroll, to include W-2s, W-4s & 1099s, salary increase/decrease records . . ." as to the Deponent. The court GRANTS the Motion as to the remaining requested records. The court DENIES Plaintiff's request for a monetary sanction because Plaintiff failed to request a monetary sanction in the Notice of Motion. The court generally cannot grant different relief, or relief on different grounds, than stated in the notice of motion. (<i>Luri v. Greenwald</i> (2003) 107 Cal.App.4th 1119, 1124-1125.) Further, the court finds that Plaintiff was substantially justified in bringing the Motion, and Defendant was substantially justified in opposing the Motion. (Code Civ. Proc., § 1987.2, subd. (a).) Plaintiff is to give notice.
8	30-2020-01170426 Babler v. Tuttle Click, Inc.	Based on Defendant's (Tuttle-Click, Inc.) Notice of Withdrawal (filed on 9-18-23 under ROA No. 195), Defendant's Motion to Quash Plaintiff Brian Babler's Notice of Issuance of Deposition Subpoena (filed on 5-5-23 under ROA No. 177, and scheduled for hearing on 9-26-23) is OFF CALENDAR .
9	30-2022-01251752 Ocloo v. Nottinson	Based on the Request for Dismissal filed on 9-13-23 under ROA No. 129, Moving Counsel's Motion to Be Relieved as Counsel (filed on 7-28-23 under ROA No. 123, and scheduled for hearing on 9-26-23) is OFF CALENDAR .
10	30-2019-01078334 Capo 2 Poche, LLC v. Kuntz	Based on the Joint Stipulation electronically received on 9-21-23 under ROA No. 291, Plaintiff's (Capo 2 Poche, LLC) Motion to Compel Defendant Daniel Kuntz to Produce Documents (filed on 5-4-23 under ROA No. 235, and scheduled for hearing on 9-26-23) is OFF CALENDAR .
11	30-2021-01202952 Paranjpe v. Almeria	As to Defendants' (Ralph Almeria and Golden Systems, LLC) unopposed Motion to Compel New Day Psychotherapy Group to Comply with Defendants' Subpoena for Plaintiff Parag Paranjpe's Mental Records (Motion), filed on 5-19-23 under ROA No. 57, the court requests Defendants to address <i>Davis v. Superior Court</i> (1992) 7 Cal.App.4th 1008, 1014.